

Brajesh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2015 · Writ-C No. 9672 of 2015 · **Writ dismissed; billing dispute relegated to clause 7.10.**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ petition challenging electricity bills issued by Dakshinanchal Electric Distribution Corporation Ltd., Farrukhabad, holding that the consumer may raise a billing dispute under clause 7.10 of the U.P. Electricity Supply Code, 2005. The bills were not examined on merits.

FACTUAL SUMMARY

Brajesh Kumar petitioned the Allahabad High Court against electricity bills issued by the Executive Engineer of the Electricity Distribution Division of Dakshinanchal Electric Distribution Corporation Ltd., Farrukhabad. The State of Uttar Pradesh and two others were arrayed as respondents. Counsel for the respondents submitted that any dispute about the bills could be raised under clause 7.10 of the U.P. Electricity Supply Code, 2005. The Division Bench did not examine whether the bills were correctly issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

billing-grievance-forum

HOLDING

A writ petition challenging electricity bills is not entertained where the consumer has a remedy to raise the billing dispute under clause 7.10 of the U.P. Electricity Supply Code, 2005; the petition is dismissed on that alternate remedy. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS ISSUED BY THE EXECUTIVE ENGINEER, FARRUKHABAD

Writ declined without examining the bills; petitioner left to clause 7.10. ¶ 1